

September 10, 2026
Motions in Limine Tentative Rulings
Department 35– Michael A. Dauber Judge

CASE NUMBER: CIVSB2306919 Elizabeth Robleto v. American Honda Motor Co., Inc.

Joint Statement of the case: Plaintiff Robleto purchased a new 2019 Honda CR-V on or about June 3, 2019 which was manufactured and/or distributed by Defendant from Defendant's authorized dealer. Plaintiff Robleto asserts that American Honda Motor Co., Inc. [AHM] breached its implied warranty obligations under the Song-Beverly Consumer Warranty Act. American Honda Motors Co., Inc. denies Plaintiff's claims.

Court Order: No further briefs on the motions in limine will be permitted absent the Court's permission. This includes a briefing labeled as a brief on the motion in limine, or for example, a trial brief, a trial memorandum, or a pocket brief. Any additional briefing filed in violation of this order will be stricken.

RULING

Plaintiff's Motions in Limine

Motion in Limine No.1: Plaintiff's Motion to Exclude Settlement Discussions. Defendant opposes. **GRANTED** Both counsel agree CEC 1152 prohibits offer[s] of settlement and compromise to prove liability. Plaintiff's motion is devoid of specifics as pointed out by Defense. Defense notes that this evidence may be admitted for some other relevant purpose and identifies three in its opposition [4: II, 14-17]. All statements resulting from contextual "negotiations" including statutory 998 offers are excluded. Plaintiff and Defense counsel are both prohibited from presenting evidence that offers were/were not made. However should Plaintiff open the door to those issues identified in Defense's opposition, the court will allow argument concerning admissibility of this evidence.

Motion in Limine No.2: Plaintiff's motion to exclude evidence of Defendant's proposed arbitration as a resolution of this matter. Defendant opposes. **GRANTED.** Plaintiff seeks damages under California Civil code section 1794 (c) not 1794(e) cf. Plaintiff's MIL 7: II 26ff. No reference will be allowed to arbitration in this matter.

Motion in Limine No.3: Plaintiff's motion to exclude mention of attorney fees and litigation costs. Defendant opposes. **GRANTED.** Under CEC 210 this is not relevant to the elements.

Motion in Limine No.4: Plaintiff's motion to exclude Plaintiff's application for financing and financial condition. Defendant opposes. **GRANTED.** This topic is not relevant under CEC 210. The ruling applies to both litigants. The respective wealth of the litigants will not be mentioned by either party. Defense argument concerning potential impeachment is excluded under CEC 210 and CEC 352.

Motion in Limine No.5: Plaintiff's motion to exclude reference to Attorney advertising. Defendant opposes. **GRANTED.** There is no relevance under CEC 210-not even to tangentially to the specific circumstances of the buyer. Voir dire as to bias will be conducted without reference to attorney advertising.

Motion in Limine No. 6: Plaintiff's motion to exclude/preclude evidence of timely revocation of acceptance was required. Defendant opposes. **GRANTED IN PART; DENIED IN PART.** This is a jury determination impacting the remedies/ measure of damages after a jury determination if a breach of implied warranty did in fact occur. This shall be addressed in the verdict form. Defense will not be permitted to argue there was no breach of implied warranty because Plaintiff failed to timely revoke but the issue is relevant to the jury determination as to which measure of damages is to be applied and evidence shall be permitted for that determination.

Motion in Limine No. 7: Plaintiff's motion that statements made by Defendant's Dealership Personnel (Warranty Agents) are non-hearsay and admissible. Defendant opposes. **GRANTED** subject to foundational requirements established outside the presence of the jury and identification of statements intended to be introduced. ECE 1220, 1222, 1224 and Civil code sections 2295 through 2300, 2304.

Motion in Limine No. 8: Plaintiff's motion to exclude any reference to CCP 998 offer to compromise. Defendant opposes. **GRANTED.** See Court's ruling Motion in Limine #1 above and cf. CCP 998(b)(2) "cannot be given trial...."

Motion in Limine No.9: Plaintiff's motion to exclude evidence or reference to Defendant's Third-party dispute resolution process. Defendant opposes. **GRANTED.** The Plaintiff has provided evidence that American Honda does not have the required "certified" program. In opposition Honda asserts it does have "certified" program, "AHM has such a certified arbitration process" [Opp. 2:II 22] and references an attached Exhibit 1 [2 fn. 1]. The court did not find Exhibit 1 attached to the declaration of AHM attorney Bajaj. Civil code section 1793.22(d)(9) requires, "Obtains and maintains certification by the Department of Consumer Affairs..." see also Civil code section 1794(e)(2) "qualified". In its motion Plaintiff has provided documentation showing AHM has no certified program. AHM has provided no documentation to establish a properly certified program.

Defendant's Motions in Limine

Motion in Limine No.1: Defense motion to preclude prejudicial references or characterizations at trial. Plaintiff opposes. **GRANTED.** CEC 175 governs here and Plaintiff is not to characterize the AHM inconsistently with the evidence code's definition. Plaintiff is to reference itself as counsel for the Plaintiff and not a "consumer" attorney/firm. No mention is to be made of current problems and media coverage of automobile manufacturers and prior bankruptcies and bail outs. No actual lemons, pictures of lemons or any reference to lemons or lemon law is to be made. The latter is colloquial and excluded under CEC 352.

Motion in Limine No.2: Defense motion to exclude evidence and testimony relating to any loss of use loss wages and other consequential damages at trial. Plaintiff opposes. **DENIED** without prejudice. The Plaintiff has a better argument here. Defense motion is seeking the court to rule akin to a motion for summary adjudication. Civil Code section 1794(b) the measure of damages is to be considered in conjunction with CACI 3242 and 3243. Plaintiff has the burden of proving that lost wages are consequential damages/ economic loss. Subject to establishing proper foundation, Plaintiff will be allowed to marshal its evidence to prove these issues.

Motion in Limine No.3: Defense motion to exclude evidence of emotional distress. Plaintiff's opposition states it is not seeking emotional distress damages. **GRANTED.** Emotional distress damages are precluded under the current lawsuit as alleged. Addressing Plaintiff's point, diminished use, value, safety and substantial impairment can be established without reference to emotional distress evidence. No emotional distress evidence is identified by either party.

Motion in Limine No.4: Defense motion to exclude any attempts by Plaintiff and/or counsel to introduce evidence/testimony about similar complaints, lawsuits, internet chat and other hearsay evidence at trial. Plaintiff opposes. **RESERVED** subject to the court hearing on "similarity" to the current issue. Plaintiff has not provided specific instances it seeks to introduce. Defense motion references several items. Prior to jury selection, the court will conduct a hearing to determine which items Plaintiff seeks to introduce. Plaintiff is to establish sufficient similarity to the current case, establish authentication and overcome hearsay objections as necessary. If these foundations are in fact established they are relevant to AHM's knowledge and notice. CEC 1101(b).

Motion in Limine No.5: Defense motion to preclude Plaintiff from introducing witnesses, evidence or contentions not disclosed in Discovery. Plaintiff opposes. **DENIED.** The Complaint was filed on March 20, 2023 and the Answer filed on June 9, 2023. A review of the record indicates no motions to compel were filed by Plaintiff or Defense. Absent proof of willful concealment which neither side has presented, Plaintiff's point that Defense remedy was to file a motion to compel and that a MIL cannot substitute for an at trial discovery assessment is well taken.

Motion in Limine No.6: Defense motion to exclude unreported complaints. Plaintiff opposes. Defendant's motion is vague. **DENIED.** Certainly, under *Silvio v. Ford Motor Co.(2003) 109 Cal. App. 4th 1205* Plaintiff is precluded from arguing that one single attempt would trigger a Song-Beverly violation. But Defense is asking the court to determine as a matter of law that these events are unrelated. This is a jury question. Assuming Plaintiff can show the requisite similarity this would be relevant at least to the subject vehicle repair history and knowledge. Subject to a constructive notice argument, any evidence of complaints not reported to AHM or its authorized dealers is excluded as it would not impact willfulness, knowledge or reasonable repair attempts.

Motion in Limine No. 7: Defense motion to exclude Settlement Discussions under Evidence code 1152. **GRANTED.** Plaintiff did not file an opposition. The court is nonplussed by this Defense motion especially since it submitted an opposition to Plaintiff's MIL No.1.

Motion in Limine No.8: Defense motion to exclude evidence and testimony of recalls, repair orders and service bulletins which do not apply to the plaintiff's vehicle and/or complaints at issue. Plaintiff opposes. **RESERVED**. This is similar to Defense MIL No.4. Recalls, Repair orders and Service Bulletins sufficiently similar to the subject vehicle issues are relevant under CEC 210 as to knowledge and notice. As with MIL No.4 court will conduct a 402 hearing prior to jury selection to determine which items Plaintiff seeks to introduce subject to establishing foundation.

Motion in Limine No.9: Defense motion to preclude evidence of non-recoverable damages. Plaintiff opposes. This is not a proper MIL As noted in MIL No 2, Plaintiff also characterizes this MIL akin to summary adjudication motion and the court again agrees. The Court will allow the Plaintiff to introduce admissible evidence to support any argument for the various types of damages available under Song-Beverly.

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Michael A. Dauber Judge San Bernardino County Superior Court